DIVISION BENCH ITEM NO. 1

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CP (CAA) No.15/ALD/2023 IN CA (CAA) No.03/ALD/2023
(Second Motion)

Under Section 230-232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation between:

TISTA VINTRADE PRIVATE LIMITED
(CIN: U51909UP2009PTC115081)

……. **Petitioner No.1/ Transferor Company**

AND

CARE SOAPS PRIVATE LIMITED
(CIN: U24243UP2001PTC026368)

……. **Petitioner No.2/ Transferee Company**

Coram:

HON'BLE MR. PRAVEEN GUPTA, MEMBER (JUDICIAL)

HON'BLE MR. ASHISH VERMA, MEMBER (TECHNICAL)

Present :

For the Petitioner Companies : Sh. Ankit Misra, PCS.
For the RoC, U.P. Kanpur : Sh. Krishna Dev Vyas, Adv.

ORDER

1. This is a joint Second Motion company petition filed by the Petitioner Companies, namely, **Tista Vintrade Private Limited (**Petitioner/ Transferor Company) and **Care Soaps Private Limited** (Petitioner/ Transferee Company) in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for brevity "Rules").

2. The Petitioners companies have prayed for sanctioning of the Scheme of Amalgamation in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections. The First Motion application seeking directions for dispensation of the requirement of

-Sd- -Sd-

convening meetings of the Equity Shareholders and Unsecured Creditors of the Applicant Companies vide CA (CAA) No.03/ALD/2023 and based on such application moved under Sections 230-232 of the Companies Act, 2013, (for brevity, the 'Act'), necessary directions were issued on 22nd August, 2023 and in the said order, the meetings of the Equity Shareholders and Unsecured Creditor of the Transferor Company and the Transferee Company were dispensed with for the reasons mentioned in the aforesaid order. Additionally, it was directed that since there are no Secured Creditors in the Transferor/ Transferee/ Applicant Company, the requirement of convening the meeting of Secured Creditors does not arise.

3. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have been discussed in detail in the order dated 22nd August, 2023.

4. Notices are accordingly issued in the present petition to be served by the Petitioner Companies through speed post within two weeks, to the following Authorities namely, (i) Central Government through Regional Director (Northern Region), New Delhi; (ii) Registrar of Companies, Uttar Pradesh, Kanpur; (iii) Official Liquidator, Allahabad; and (iv) Jurisdictional Income Tax Authority by mentioning the PAN of the Company along with a copy of this petition in soft copy as well as hard copy.

5. Mr. Krishna Dev Vyas, Ld. Counsel present on behalf of ROC present and accepts notice for the same. Let the copy of the petition be served to the Ld. Counsel representing the ROC within three days.

6. Additionally, notice be issued to the concerned Assessing Officer of Income Tax Department as informed by the Ld. Counsel for the petitioner as per the PAN of the petitioner company.

7. In addition to the above public notices, the notice of hearing will also be advertised in "Business Standard" in "English" and "Hindi language", having wide circulation over the area where the registered office of the company is situated by not less than 10 days before the next date fixed for hearing.

-Sd- -Sd-

8. The Petitioner companies shall at least 7 days before the date of hearing of the petition, file an affidavit of service regarding newspaper publication, with newspaper clippings, as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given, may be filed within 30 days of receipt of notice failing which, it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The Petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

9. The next date of hearing of the petition shall be on 1st November, 2023 for further consideration of the approval of the scheme as contemplated between the petitioner companies.

10. The registry shall also report before the date fixed for next hearing, as to whether any objections have been received to the proposed 'Scheme'.

-Sd-

(Ashish Verma)
Member (Technical)

-Sd-

(Praveen Gupta)
Member (Judicial)

21st September, 2023

Priya Agarwal
(Stenographer)